

The Family Court of the State of Delaware

In and For ☐ New Castle County ☐ Kent County ☐ Sussex County

CUSTODY SEPARATE STATEMENT

Petitioner

v. Respondent

Name	Name	File Number
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1. What type of petition are you filing? _____

2. Who is the child(ren) named in your petition? (Please provide full name and date of birth)

Child's Name	Date of Birth (mm/dd/yyyy)	Place of Birth (City, State)

3. Have all the children listed above continually resided with one another? ☐ Yes ☐ No

If you answered "No," the children have not continually resided with one another; please complete a Custody Separate Statement for each child.

C U R R E N T A D D R E S S	Address where child(ren) <u>currently reside(s)</u> ** If the address where the child(ren) currently resides is a confidential address in Family Court, DO NOT provide the address on this form. Instead, please mark the fields as CONFIDENTIAL.		Date(s) Child(ren) lived here to present		
	Address		City	State	Zip
	People living in the household with the child(ren):		Date of Birth	Relationship to child(ren):	

4. During the **past five years**, where has/have the child(ren) lived? List addresses from the most recent to the oldest. If the child(ren) is under the age of five years old, end with the first address where the child lived.

P R I O R A D D R E S S	Address where child(ren) previously resided		City	State	Zip Code
	Date(s) child(ren) lived there to	Name of person(s) child(ren) lived with	Relationship to child(ren)		
	Person's current address	City	State	Zip Code	

P R I O R A D D R E S S	Address where child(ren) previously resided		City	State	Zip Code
	Date(s) child(ren) lived there to	Name of person(s) child(ren) lived with	Relationship to child(ren)		
	Person's current address		City	State	Zip Code

P R I O R A D D R E S S	Address where child(ren) previously resided		City	State	Zip Code
	Date(s) child(ren) lived there to	Name of person(s) child(ren) lived with		Relationship to child(ren)	
	Person's current address		City	State	Zip Code
P R I O R A D D R E S S	Address where child(ren) previously resided		City	State	Zip Code
	Date(s) child(ren) lived there to	Name of person(s) child(ren) lived with		Relationship to child(ren)	
	Person's current address		City	State	Zip Code

5. Check **ONE** and complete as directed.

- ☐ No one other than the parties have physical custody, legal custody or visitation rights with the child(ren).
☐ A person(s) other than the parties have physical custody, legal custody or visitation rights with the child(ren). If you check this box, complete the information below. Attach additional sheets if necessary.

P E R S O N 1	Name of person(s) with physical custody, legal custody or visitation		Relationship to child(ren)		
	Person's current address	City	State	Zip Code	
P E R S O N 2	Name of person(s) with physical custody, legal custody or visitation		Relationship to child(ren)		
	Person's current address	City	State	Zip Code	

6. Select all that apply and complete as directed.

- ☐ I have not been involved in any other court action for custody and/or visitation of this child(ren).
☐ I have been involved in another court action for custody and/or visitation of this child(ren). If you check this box, complete the information below. Attach additional sheets if necessary.

A C T I O N 1	Type of Action (e.g. Custody, Visitation, Other)	Person (who filed the action)		State
	Court	Case Number	Date Filed	
	Result			Date of Order
A C T I O N 2	Type of Action (e.g. Custody, Visitation, Other)	Person (who filed the action)		State
	Court	Case Number	Date Filed	
	Result			Date of Order

A C T I O N 3	Type of Action (e.g. Custody, Visitation, Other)		Person (who filed the action)		State
	Court		Case Number	Date Filed	
	Result				Date of Order

7. Check **ONE** and complete as directed.

- ☐ I do not know of any other court action such as, Protection From Abuse, Termination of Parental Rights, Guardianship, Adoption or Paternity involving myself, the other party or the child(ren) that could affect this petition.
- ☐ I, the other party or the child(ren) have been and/or are currently involved in another court action such as, Protection From Abuse, Termination of Parental Rights, Guardianship or Adoption, that could affect this petition. *If you check this box, complete the information below. Attach additional sheets if necessary.*

A C T I O N 1	Type of Action (e.g. PFA, TPR, Guardianship, Other)		Person (who filed the action)		State
	Court		Case Number	Date Filed	
A C T I O N 2	Type of Action(e.g. PFA, TPR, Guardianship, Other)		Person (who filed the action)		State
	Court		Case Number	Date Filed	

Petitioner

Sworn to and subscribed before me this ____ day of ____, ____.

Clerk of Court/Notary Public